GRIMES COUNTY COMMISSIONERS COURT

OFFICIAL MINUTES — WEDNESDAY, NOVEMBER 4, 2026

The Grimes County Commissioners Court met on Wednesday, November 4, 2026, at 9:00 A.M.
Members Present: County Judge Joe Fauth, Commissioner Chad Mallett, Commissioner David Tullos, Commissioner Michael Raska, Commissioner Phillip Cox.

County Judge Joe Fauth called the meeting to order.

Call to Order

Invocation

County Judge Joe Fauth invited those present to stand for the invocation and the pledges to the United States and Texas flags. Sr Pastor House of Blessings Pastor Charles Tompkins offered a prayer, asking for wisdom and insight for the commissioners and judge, and requesting justice and peace for all those appearing before the court.

Pledge of Allegiance to the U.S. Flag

Pledge of Allegiance to the Texas Flag

Public Comments

Richard Gremillion of Richards, Texas addressed the court to offer congratulations to County Judge Joe Fauth for his reelection in the previous night's election, and to congratulate Gregg Mock and Carter David Benton on their elections to the Commissioners Court. Gremillion stated that the new court would consist of Judge Fauth, Commissioner Chad Mallett, Commissioner Benton, Commissioner Michael Raska, and Commissioner Mock, and characterized this as the most transformative period in the history of Grimes County, Texas. He expressed his prayer that the court would govern with wisdom and courage under divine guidance and provide well for the future of Grimes County for the benefit of its posterity.
County Judge Joe Fauth addressed the court regarding his duties as executor for the estate of deceased neighbors, Doctor Craig Heffelman and his wife, who passed away in November 2025 and March 2026 respectively. Judge Fauth stated that as executor of their will, one of the distributions was a $125,000 donation to the Grimes County Animal Shelter, and he presented the check and obtained a signature on a receipt to fulfill his executive duties. Judge Fauth noted that the deceased had also made distributions to the Navasota shelter and the Montgomery animal shelter in appreciation of the work performed by shelter staff.
We look forward to hearing from the citizens of Grimes County. If you wish to make public comments you will need to submit a Public Participation Form prior to the start of the meeting and give it to the County Clerk. Public comments will be limited to 2 minutes per person.

Consent Agenda Items

County Judge Joe Fauth presented consent agenda item number one, a replat of Country Town Estates Lot 105 located in Precinct 1, noting that a public hearing had been held that morning at 08:45.

Motion by Commissioner Chad Mallett to Approve consent agenda items one through four and six through nine, with item two amended to remove approval of sole source procurements. Seconded by Commissioner David Tullos. Carried (5–0–0).

1. **Consider and approve the replat of Country Town Estates Lot 105 located in Precinct 1.**
2. **Discuss and take action to award annual contracts, amend annual contracts, and approve sole source procurements.**
3. **Request approval of a contract with Eubank Excavation, LLC for construction of GLO MIT-MOD Contract Number 24-065-085-E761 Tawneyberry/Live Oak road project and authorize the County Judge as signatory.**

   County Judge Joe Fauth presented the request for approval of a contract with Eubank Excavation LLC for construction of the GLO MIT-MOD Contract Number 24-065-085-E761 Tawneyberry and Live Oak Road project. Commissioner David Tullos pulled the item to ask County Engineer Jon Steiber about the contract timeline. Tullos noted that the contract showed an October 9 start date despite the meeting occurring in November and asked whether the dates would be adjusted. County Engineer Jon Steiber confirmed that a start date would be established after contract approval and indicated the contractor believed the work could be completed this year, potentially faster than the ninety-day estimate.

   Commissioner Tullos then raised concerns about property owners along the roads who had extended fences into the county right-of-way, particularly in areas where culvert placement and replacement would occur. He inquired how the county would notify residents that fences might need to be removed to restore the original ditches and asked whether the work would restore the original ditch alignment or create irregular patterns to work around existing encroachments. County Engineer Steiber responded that the road alignment did not impact those encroachments and that the county would do as much work as possible without extensive additional work. The discussion continued at length regarding how specific situations with fence encroachments would be handled, with Steiber suggesting Tullos email his concerns so he could submit the question to the project engineer. Tullos indicated he preferred to discuss the matter directly with Steiber to understand the county's notification and fence removal approach.
4. **Approve Monthly Report submitted by the County Treasurer for September 2026 and authorize advertisement of affidavit of same, in accordance with Local Government Code 114.026.**
5. **Consider and accept Sole Source Statement from Mac Haik.**
6. **Accept donation and/or gifts to the County pursuant to Texas Local Government Code 81.032.**
7. **Consider and take action to approve the Treasurer's List of Claims and Bills.**
8. **Consider and take action to approve payroll.**
9. **Consider and take action to approve Budget Amendments and/or Line-Item Transfers.**

Presentation of Employee Service Awards

10. **Consider and recognize the following employees for their years of service:**

    5 years: Elizabeth Douga-Vannolan, Coushatta Lantz, John Anderson
    10 years: Michael Briggs
    15 years: Bobbie Burns
    20 Years: Jimmy Armatys
    30 Years: Brenda Johnson
    County Judge Joe Fauth opened the recognition by inviting employees forward to be celebrated

for their years of service. Facilities Director Rodney Floyd spoke about two five-year service honorees, noting that they work behind the scenes and do great work, and that it is nice to see the faces that go with that effort. Human Resource Director Atina Adair reported that John Anderson and Bobbie Burns, who were also receiving five-year and fifteen-year awards respectively, would have their awards presented to the Road and Bridge staff on Monday since they were not present at the meeting. Deputy Michael Briggs received his ten-year service award, and Chief Deputy Martha Smith praised his versatility, recounting his progression from jailer to sergeant in the jail, through various assignments including diversion crew and jail lieutenant, before becoming a deputy. Smith also noted that Briggs builds items for nonprofits to auction off, raising significant funds for community organizations.
County Judge Joe Fauth recognized Jimmy Armatys for twenty years of service and humorously noted that not knowing Armatys meant one had not been stopped for a traffic violation. Commissioner David Tullos presented the award and spoke warmly of Armatys as a modest, always-on-call law enforcement officer living in his neighborhood. Brenda Johnson received recognition for thirty years of service with the juvenile probation office. Director Juvenile Probation Brandon Borski delivered extensive remarks highlighting Johnson's dedication, compassion, and character, emphasizing her commitment to supervising the community service and restitution program while showing personal kindness to children in need, and noting her significant role in keeping youth out of adult probation. County Judge Joe Fauth added that Johnson also ensures the office maintains proper temperature control and credited her work with keeping many young people out of the adult probation system.

Presentation of Monthly Departmental Reports

11. **Human Resources, IT — Human Resources, IT**

    Human Resource Director Atina Adair reported on current vacancies across Grimes County departments and their recruitment efforts. The sheriff's office has openings for one jail sergeant, one jail administrator (with a candidate currently in jail school), four patrol deputies (two candidates in background processing), two jailers (four candidates in various processing stages), and two dispatchers (two in background processing). The District Attorney's office has identified an ADA candidate starting Monday.

    In IT, the county is interviewing candidates for a PC Tech One position. Elections and Voters has a newly opened senior office assistant position posted to internal sites and the Texas Workforce Commission. The road department seeks an operator with grading and motor grader experience at the 37k to 41k range, and Adair reported that candidates for both administrative assistant and development tech positions are in background processing with an expected start within seven to ten business days. The fire marshal's office has one deputy candidate in background processing. County Judge Joe Fauth thanked Adair and asked to be kept updated. Judge Fauth then noted that he had requested the IT director not attend the meeting, explaining that for security reasons, detailed information about system protections and cybersecurity measures should not be discussed publicly; he asked permission to remove regular IT updates from the agenda while allowing the director to report on routine business and contract savings.

Presentation of Monthly Commissioners Court Liaison Reports

12. **County Judge: Maintenance, HR, IT, Emergency Management, Road Department, Veterans Services, Elections, Navasota Grimes County Chamber of Commerce;**

Commissioner Pct. 2: Animal Shelter, Historical Commission, Navasota Grimes County Chamber of Commerce, Bluebonnet Groundwater Conservation District Board;

Commissioner Pct. 3: 911 Addressing/Permits/Environmental/Solid Waste, BVCOG Solid Waste Advisory Committee;

Commissioner Pct. 4: Fairgrounds, Hospital Contracts, EMS Services, Health Resource Center

Commissioner Phillip Cox reported that Saint Joseph has purchased a new Tahoe for the EMS field supervisor and that two new ambulances will be picked up November 17.

Sexual Assault Resource Center (SARC) Lead Advocate - Viviana Castillo (JF) — Viviana Castillo, Sexual Assault Resource Center (SARC)

13. **SARC introduction — Viviana Castillo, Sexual Assault Resource Center (SARC)**

Dr. Vanessa Smith introduced herself as the new leadership of SARC alongside director of advocacy Ashley Thompson, following a recent transition period. The organization provides free counseling, advocacy, outreach, and education services to survivors of current and historical sexual assault throughout Grimes County. SARC reported serving 623 individuals this year, a 25% increase from the prior year, with service to county residents specifically doubling from five or six to eleven or twelve individuals. County Judge Joe Fauth confirmed that SARC is included in the 2027 budget.

Grimes County Facilities Director - Rodney Floyd (PC) — Rodney Floyd, Grimes County Facilities

14. **Discuss and take any necessary action on projects and repairs. — Rodney Floyd, Grimes County Facilities**

Facilities Director Rodney Floyd reported on two emergency callouts requiring approval on October 11 and October 17. Floyd provided an update on recent Fairgrounds activities, noting that the Patriots of Texas event drew approximately 800 people over two days and proceeded successfully despite a minor electrical grounding issue with an RV spot that was quickly resolved. Floyd explained that the facilities team is preparing for the busy winter season, with upcoming activities including AgriLife continuing education classes, cattle shows, and floor repolishing in the main hall scheduled for November 10. He noted ongoing efforts to resolve fire alarm and programming issues at the justice center, which have required weekend work, and indicated that staff would post the approved jail RFQ online. Floyd also addressed a water leak in the closed loop HVAC system at the historical building, explaining that the team is coordinating with TxDOT, the city, and Anderson Water regarding right-of-way access before scheduling repairs. County Judge Joe Fauth confirmed that the leak would not require county offices to close except potentially one office, and that the issue affects only the cooling system, not the actual water supply.

Motion by Commissioner Chad Mallett to Approve the two emergency call-outs from October 11 and October 17. Seconded by Commissioner Phillip Cox. Carried (5–0–0).

15. **Discuss and take action to accept the donation from Kinder Morgan and allow the Auditors to make necessary changes to place funds in FY27 0036.0465.4410 line for Fairgrounds. — Rodney Floyd, Grimes County Facilities**

Facilities Director Rodney Floyd reported that Kinder Morgan presented a donation to help cover part of the cost of a sign installed on Highway 90 for the Fairgrounds. The sign is used for public announcements including Amber alerts and fair event information. Floyd requested acceptance of the donation and authorization for the auditors to place the funds in the appropriate line item

for Fairgrounds.

Motion by Commissioner Phillip Cox to Accept the donation from Kinder Morgan and authorize the Auditor's office to place funds in FY27 line 0036.0465.4410 for Fairgrounds. Seconded by Commissioner Michael Raska. Carried (5–0–0).

16. **Discussion and possible action regarding a request from Grimes County Youth Football for use of the Main Hall at the Grimes County Fairgrounds for their end-of-year banquet, including consideration of rental fees and previously established rental agreement deadlines. — Rodney Floyd, Grimes County Facilities**

    County Judge Joe Fauth introduced a request from Grimes County Youth Football for use of the main hall at Grimes County Fairgrounds for their end-of-year banquet, noting that the organization sought consideration of rental fees and previously established rental agreement deadlines. Facilities Director Rodney Floyd explained that the county had been working with the organization and that the court would need to determine whether to grant any discounted rate or waive the sixty-day scheduling requirement. Board Member Macy Savant and the organization's president, Tracy Rush, presented their request. Savant outlined that Grimes County Youth Football Association serves over 175 children annually, with 75 placed on payment plans and 30 requiring sponsorship assistance to participate. The organization also hosted a free summer camp that welcomed over 200 children with assistance from 63 volunteers. Savant explained that sponsorships received are directed back into youth programs and that the organization requests the county fully waive rental fees as an in-kind sponsorship to support their mission. She noted that the banquet, scheduled for December 13, 2026, would accommodate approximately 300 to 400 attendees and would celebrate children, parents, coaches, and volunteers while recognizing those who make the organization possible.
    County Judge Joe Fauth clarified whether any field competitions would occur inside the facility, and Board Member Savant confirmed none would. Commissioner Phillip Cox asked whether the organization would still provide required security under the contract, which Savant confirmed. County Attorney Megan Barcak requested clarification that the court was waiving fees rather than providing a sponsorship and recommended waiving the thirty-day timeline requirement given the event's scheduled date and the need for the organization to complete contractual obligations.

Motion by Commissioner Phillip Cox to Approve the request from Grimes County Youth Football to waive the rental fees for use of the Main Hall at the Grimes County Fairgrounds for their end-of-year banquet on December 13, 2026, waiving the sixty-day scheduling deadline, with all other contract requirements including security remaining in place, and noting it is a fee waiver not a sponsorship. Seconded by Commissioner Michael Raska. Carried (5–0–0).

Grimes County Treasurer - Tom Maynard (JF) — Tom Maynard, Grimes County Treasurer

17. **Approve payment of Emergency Pay to Heather Garcia and Sarah Santoy for work performed during the county shutdown due to lack of water service in the town of Anderson in order to get the split payroll completed timely. — Tom Maynard, Grimes County Treasurer**

    County Treasurer Tom Maynard explained that Heather Garcia and Sarah Santoyd worked during the county shutdown caused by water service loss in Anderson to help complete the split payroll for the fiscal year transition. He noted that this payroll, affecting 200 employees, required calculating hours paid at both the old rate through September 30 and the new rate from October 1 forward—a complex and error-prone process. The employees worked late Sunday into Monday morning and some hours from home on Monday to ensure timely payroll completion, warranting emergency compensation for their efforts.

Motion by Commissioner David Tullos to Approve payment of emergency pay to Heather Garcia and Sarah Santoy for work performed during the county shutdown due to lack of water service in the town of Anderson in order to get the split payroll completed timely. Seconded by Commissioner Phillip Cox. Carried (5–0–0).

18. **Discuss and take action to approve contract with Attendance on Demand, Inc dba WorkSync for automatic timekeeping services for Grimes County payroll and approve the County Judge as signatory. — Tom Maynard, Grimes County Treasurer**

    County Judge Joe Fauth introduced the agenda item to discuss and take action on a contract with Attendance On Demand Inc. for automatic timekeeping services for Grimes County payroll. Mr Maynard asked for this item to be postponed due to previous discussion with the Auditor's office. One of the issues with a timekeeping system is the way law enforcement is paid on a twenty eight day basis and 180 hours.

    No action.

Grimes County Sheriff's Office - Chief Deputy Martha Smith (JF) — Martha Smith, Grimes County Sheriff's Office

19. **Consider and take action to establish Fund 75 Sheriff's Forfeiture Account, including the creation of the applicable revenue and expenditure line items. — Martha Smith, Grimes County Sheriff's Office**

    Business Manager GSO Michelle Weeks presented a request to establish Fund 75 Sheriff's Forfeiture Account with applicable revenue and expenditure line items in accordance with criminal procedures. She clarified that no funding allocation was being requested at this time, only the creation of the necessary line items to receive forfeiture funds.

    Motion by Commissioner Phillip Cox to Establish Fund 75 Sheriff's Forfeiture Account, including the creation of the applicable revenue and expenditure line items. Seconded by Commissioner Chad Mallett. Carried (5–0–0).

Grimes County EMC/Fire Marshal - Dione Bumpous (JF) — Dione Bumpous, Grimes County EMC/Fire Marshal

20. **Discuss and take action to properly classify Deputy Fire Marshal and allow the Auditors office to make the necessary changes. — Dione Bumpous, Grimes County EMC/Fire Marshal**

    Fire Marshal Dione Bumpous presented the newly created deputy fire marshal position for proper classification within the county's TCOL structure. The position had been omitted from the budget despite funding being available. Bumpous specified the role as a Grade Level Seven Investigator with a salary range of $77,311 to $87,341. County Auditor Jessi Murphy noted the funds existed but required authorization to reclassify them to the appropriate budget line.

    Motion by Commissioner Phillip Cox to Approve proper classification of Deputy Fire Marshal at grade level L7 Investigator with salary range of $77,311 to $87,341, and authorize the County Auditor's office to make the necessary budget changes. Seconded by Commissioner Michael Raska. Carried (5–0–0).

Grimes County Engineer - Jon Steiber (JF/CM) — Jon Steiber, Grimes County Engineer

21. **Discuss and take any necessary action on maintenance, construction projects, permitting, or grants. — Jon Steiber, Grimes County Engineer**

    County Engineer Jon Steiber reported on 147 maintenance and construction items completed in September that were discussed at the October 21 meeting. Commissioner David Tullos

requested answers regarding the TawneyBerry grant, which County Judge Joe Fauth indicated would be provided.

22. **Consider and take action to accept right-of-way easement dedication on County Road 409 in support of GLO MID-MOD Contract #24-065-085-E761 and authorize the County Judge as signatory to accept right-of-way easement dedications on behalf of the County. — Jon Steiber, Grimes County Engineer**

    County Engineer Jon Steiber explained that the grant administrator requires the county to formally state its acceptance of right-of-way easement dedications for compliance purposes. He noted this was a standard acceptance of three easement dedications on County Road 409 in support of GLO MID-MOD Contract #24-065-085-E761 and indicated that County Judge Joe Fauth's signature was needed to approve them.

    Motion by County Judge Joe Fauth to Accept right-of-way easement dedication on County Road 409 in support of GLO MID-MOD Contract #24-065-085-E761 and authorize the County Judge as signatory to accept right-of-way easement dedications on behalf of the County. Seconded by Commissioner Phillip Cox. Carried (5–0–0).

23. **Discuss and take action to approve a professional services contract with MBC Management for design of the CR 175 bridge over Panther Creek. — Jon Steiber, Grimes County Engineer**

Mr. Steiber asked that this agenda item be tabled.

Grimes County Judge - Joe Fauth III — Joe Fauth III, Grimes County Judge

24. **Consider and take action regarding the Burn Ban and authorize the County Judge as signatory. — Joe Fauth III, Grimes County Judge**

    Not currently under a burn ban order.
    County Judge Joe Fauth determined that grounds were sufficiently wet and authorized continuation of the current status without implementing a burn ban, while reminding the public to exercise caution when burning.

    Motion to No Action taken.

25. **NARC notes. — Joe Fauth III, Grimes County Judge**

    County Judge Joe Fauth reported on his attendance at the National Association of Regional Councils conference held October 17–21 in Pismo Beach, California. The conference focused on shaping federal policy and advocating for the role of regional councils in coordinating and delivering federal programs, many of which have faced cuts or elimination. Judge Fauth noted that he serves as a board representative for the B.V. Cog Board and as a member-at-large for NARC. The executive director outlined the need to expand advocacy efforts and increase influence in Washington DC. The conference drew 92 attendees representing 63 regions from 28 states.

Grimes County Human Resources Director - Atina Adair (JF) — Atina Adair, Grimes County Human Resources

26. **Consider and take action to amend employee policy section "2A-7 Pay Periods". — Atina Adair, Grimes County Human Resources**

    Human Resource Director Atina Adair presented an amendment to employee policy section 2A-7 regarding pay periods. Adair explained that the last pay period of the fiscal year and the first of the new fiscal year require complex processing by the treasurer's and auditor's offices. During these periods, many employees called reporting late paychecks, though the paychecks were

actually on time. The confusion arose because the treasurer's office typically closes payroll by Wednesday, causing checks to arrive early, leading some employees to believe payday was Wednesday or Thursday rather than Friday. Adair requested adding the word "Friday" to the policy language to clarify that payday falls on Fridays according to dates established by the Commissioners Court. County Treasurer Tom Maynard added that banks themselves sometimes contribute to confusion by giving customers access to deposits a day early, so some employees see funds in their accounts on Thursday or even Wednesday. Adair reiterated that the written clarification would help prevent misunderstandings among county employees.

Motion by County Judge Joe Fauth to Amend employee policy section 2A-7 Pay Periods to add that payday will fall on Fridays according to the dates established by the Commissioners Court. Seconded by Commissioner Michael Raska. Carried (5–0–0).

27. **Consider and take action to create employee policy for "call-outs". — Atina Adair, Grimes County Human Resources**

    No action.

    Motion to No Action taken.

28. **Discuss, consider and take action on personnel matters for new Grimes County Sheriff's Office employee. — Atina Adair, Grimes County Human Resources**

    It is expected that the Court will conduct a closed session as authorized by Texas Government Code 551.074 (Personnel Matters).
    County Judge Joe Fauth convened a closed executive session on personnel matters for a new Grimes County Sheriff's Office employee, with County Attorney Megan Barcak, County Auditor Jessi Murphy, Human Resource Director Atina Adair, Sheriff Don Sowell, Chief Deputy Martha Smith, and Business Manager Michelle Weeks remaining. Following the session, the court reconvened at 10:39 to consider the matter.

    Motion by Commissioner Chad Mallett to Approve a pay rate for the new Grimes County Sheriff's Office jail administrator at the Lieutenant TCOLE rate, which is above the maximum pay rate for administration, and authorize the Auditor to move monies from line items in fund 454 to make necessary changes. Seconded by Commissioner David Tullos. Carried (5–0–0).

Motion by Commissioner Michael Raska to Adjourn the meeting. Seconded by Commissioner Phillip Cox. Carried (5–0–0). The meeting adjourned at 9:58 AM.

THE OFFICIAL MINUTES OF THE GRIMES COUNTY COMMISSIONERS COURT ON November 4th, 2026, ARE HEREBY APPROVED.

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County Clerk, Barbara Kimich